

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

Complainant,

v.

Docket No: 25-14

OAK WAY CARGO, LLC,

Respondent.

RESPONSE IN OPPOSITION TO RESPONDENT’S MOTION TO DISMISS

Complainant, WAY 2 GO CARGO CORP., a Florida Corporation (“Complainant” or “Way2Go”), by and through its undersigned counsel, hereby files this Response in Opposition to the Motion to Dismiss filed by Respondent, OAK WAY CARGO, LLC, a Florida limited liability company (“Respondent” or “OAK”), and states as follows:

INTRODUCTION

OAK’s Motion to Dismiss is a transparent attempt to avoid judicial scrutiny of its willful violations of the Shipping Act of 1984, as amended and codified at 46 U.S.C. §§ 40101 et seq. (the “Act”), and related federal regulatory schemes. OAK, an unlicensed and unbonded entity, has and continues to unlawfully hold itself out as an Ocean Transportation Intermediary (“OTI”) and Non-Vessel Operating Common Carrier (“NVOCC”). OAK has knowingly misappropriated Way2Go’s Federal Maritime Commission (“FMC” or “Commission”) license No. 027779 (the “FMC License”), a lawfully registered and federally licensed OTI, to conduct international freight services in violation of federal law. This is not a case of mere contractual dispute or mistaken identity. It is a deliberate scheme to circumvent the strict licensing, bonding, and public disclosure requirements imposed by Congress through the Act. Respondent’s unlawful conduct includes,

among other things: issuing House Bills of Lading (“HBLs”) under Way2Go’s name and license number without consent; collecting freight payments directly from customers while concealing the fact that OAK was not a licensed OTI; and falsely representing itself to shippers, freight consolidators, and foreign consignees as a duly licensed OTI and NVOCC under the guise of Way2Go’s FMC credentials.

In seeking dismissal, OAK attempts to recast Way2Go’s Verified Complaint (the “Verified Complaint”) as a collateral effort to relitigate the same matter in alternative forums. However, this position is contradicted by the factual details and supporting documentation attached to Way2Go’s Verified Complaint. Way2Go has attached and made part of its Verified Complaint specific shipments, communications, invoices, and HBLs that were issued unlawfully by OAK while operating under Way2Go’s FMC License. *See* Verified Compl., Ex. B, E. OAK’s Motion to Dismiss also ignores the central legal issue: whether an unlicensed entity can continue to misappropriate a regulated license and operate as a common carrier in violation of federal law while evading the oversight and protections specifically enacted by Congress to safeguard the shipping public. Notably, OAK is not a party to state court proceedings, and the claims made and relief sought herein are not being adjudicated in state court.

The Verified Complaint satisfies all applicable pleading standards under Rule 8(a)(2) of the Federal Rules of Civil Procedure which requires that a complaint only have “a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.” Here, Way2Go’s Verified Complaint is sufficiently detailed to put OAK on notice of the claims asserted, and to permit this Court to exercise its proper gatekeeping role in evaluating the merits of the action. OAK also suggests that the Complaint is a tactical attempt to “cripple Oak Way’s operations.” To

the contrary, Way2Go seeks equitable relief to prevent continuing violations of the Act and to protect both its business and the integrity of the Commission's licensing system.

In sum, OAK's Motion to Dismiss is procedurally and substantively deficient. The Verified Complaint alleges a coordinated and ongoing pattern of unlawful conduct that directly implicates both federal and state law protections for licensed maritime operators and the public they serve. This case must proceed to the merits, where Respondent can answer for its actions in a forum equipped to weigh the factual and legal issues at stake.

LEGAL ARGUMENT

I. Way2Go Has Suffered a Direct and Cognizable Injury as a Result of OAK's Violation of 46 U.S.C. § 40901(a).

Way2Go's Verified Complaint clearly establishes standing to bring this action under the Act because it has suffered a concrete, particularized, and ongoing injury directly resulting from OAK's violations of 46 U.S.C. § 40901(a). That provision states, "a person in the United States may not advertise, hold oneself out, or act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the [FMC]." 46 U.S.C. § 40901(a). Accordingly, to maintain an action under the Act, a complainant must demonstrate that it has suffered an actual injury in order for the FMC to "direct the payment of reparations to the complainant for actual injury caused." *See* 46 U.S.C. § 41305(c). This statutory provision expressly prohibits any person from acting as an OTI without first obtaining a valid license from the FMC.

The statutory definition of "actual injury" under 46 U.S.C § 41305 encompasses pecuniary losses, including the "loss of interest at commercial rates compounded from the date of injury[.]" reflecting the Act's remedial purpose to fully compensate parties harmed by violations of the Act.

The Supreme Court has long recognized that injuries to commercial interests, such as lost profits, customer diversion, and reputational harm, falls within the “zone of interests” protected by statutes governing commercial conduct. *See Lexmark Int’l, Inc. v. Static Control Components, Inc.*, 572 U.S. 118, 131–32 (2014). The FMC has likewise confirmed that unlicensed conduct that “distorts the competitive landscape” and misleads the public justifies regulatory sanctions and reparations. *See In re Vehicle Carrier Servs. Antitrust Litig.*, 846 F. 3d 71, 77 (3d Cir. 2017).

OAK’s scheme has directly impaired Way2Go’s business, diverted its revenues, damaged its reputation, operations, and goodwill, and stripped it of operational control over key logistical platforms and financial accounts. These injuries are specific, legally cognizable, and fall within the interests that 46 U.S.C. § 40901(a) was enacted to protect.

a. Misappropriation of Way2Go’s FMC License and Diversion of Revenues.

Way2Go alleges, and OAK does not meaningfully dispute, that OAK utilized Way2Go’s FMC license number and identity on shipping documentation, including but not limited to HBLs, rate quotations, and carrier contracts without Way2Go’s knowledge or consent. In furtherance of this scheme, OAK diverted proceeds rightfully owed to Way2Go into unauthorized bank accounts opened and controlled by the Vice President of Way2Go, Ms. Nanoei Alves (“Alves”). One such account was held at Bank of America in the name of Way2Go without the knowledge or approval of Ernani Ferraz (“Ferraz” or “Mr. Ferraz”), the President and the majority shareholder of Way2Go.

OAK’s misappropriation of Way2Go’s FMC License and the resulting diversion of customer payments constitute a clear and compensable pecuniary injury under the Act. Specifically, Way2Go lost revenue from services that were carried out under its FMC License, without its knowledge, participation, or compensation. This financial harm, whereby OAK reaped

the economic benefit of transactions executed under Way2Go's regulatory identity, meets the statutory meaning of "actual injury" as defined by 46 U.S.C. § 41305(c).

The Supreme Court has recognized that under federal regulatory schemes, reparations are appropriate where there is a demonstrable discrepancy between what a party lawfully should have received and what it actually received as a result of the unlawful conduct. *See Meeker v. Lehigh Valley R. Co.*, 236 U.S. 412, 419 (1915). Similarly, in *Consolo v. Federal Maritime Commission*, 383 U.S. 607, 623–24 (1966), the Court affirmed the FMC's award of reparations for lost profits where a carrier unlawfully refused to carry freight, establishing that business losses stemming directly from regulatory violations are cognizable under the Act.

Here, the financial disruption to Way2Go is both *direct* because OAK's unauthorized use of Way2Go's FMC license caused clients to make payments to OAK under the false belief they were contracting with Way2Go, and *proximate*, because the harm was the natural and foreseeable consequence of OAK misrepresenting itself as a licensed OTI. These injuries are not incidental or speculative; rather, they are the precise harms Congress intended to address by authorizing reparations for "actual injury" under 46 U.S.C. § 41305(c).

b. Unauthorized Control Over Way2Go's Shipping Infrastructure.

OAK's unlawful control of Way2Go's identity enabled OAK to actively and unlawfully operate as an OTI without fulfilling the statutory prerequisites under 46 U.S.C. § 40901. In furtherance of its scheme to function as a de facto licensed carrier, OAK wrongfully assumed operational control of Way2Go's ShipThis account, a third-party logistics platform central to Way2Go's operations. By changing administrative credentials and locking out Way2Go personnel, OAK was able to use this infrastructure to issue HBLs, manage shipping documentation, and transact business as if it were a licensed OTI—while Way2Go remained the subscriber of record.

OAK could not have engaged in this conduct *but for its misappropriation* of Way2Go’s license and regulatory identity, as access to such systems is premised on active FMC licensure.

Crucially, OAK’s ability to seize and exploit this infrastructure was not merely a commercial dispute—it was a direct outgrowth of its unlawful conduct as an unlicensed OTI. OAK could not have gained or maintained this access but for its misappropriation of Way2Go’s regulatory identity. Thus, its argument that the harm alleged “has nothing to do” with licensure is flawed. The injury flows not simply from a business dispute, but from OAK’s unauthorized use of a federal license to which it had no entitlement.

The Commission has recognized that interference with commercial infrastructure and loss of control over core business functions qualify as “actual injury” under 46 U.S.C. § 41305(c). *See Lexmark Int’l, Inc. v. Static Control Components, Inc.*, 572 U.S. 118, 132 (2014) (holding that reputational and operational harms from unfair competitive conduct are actionable where the statute protects commercial interests). This is precisely the kind of harm the FMC was created to address.

c. Reputational Harm and Regulatory Exposure.

Way2Go became aware of OAK’S conduct after being contacted by the Department of Homeland Security U.S. Customs and Border Protection Notice on behalf of a longstanding importer, Best Stone Imports LLC, regarding an unpaid customs duty on a shipment falsely attributed to Way2Go. *See Verified Compl.*, Ex. E. Way2Go had no involvement in the shipment. Upon investigation, it learned that OAK had used Way2Go’s FMC License on documentation while deliberately omitting the license number from certain HBLs to evade detection.

This type of impersonation has dual consequences: (1) it exposes Way2Go to regulatory penalties for conduct it did not undertake; and (2) it undermines its credibility in the marketplace,

as counterparties begin to question the authenticity of its transactions. In *Consolo*, the Supreme Court upheld reparations for a shipper who suffered both financial and reputational harm after a carrier refused to transport its goods, resulting in lost business and credibility. The Court held that such injuries, if supported by substantial evidence, are compensable under the Act. *Consolo*, 383 U.S. at 622. Here, Way2Go suffered comparable injuries when OAK, lacking a valid license, misused Way2Go's FMC credentials to operate as an OTI. This impersonation misled federal agencies and customers, damaged Way2Go's regulatory standing, and impaired its business reputation—precisely the type of harm *Consolo* affirms as actionable under 46 U.S.C. § 41305(c).

d. Competitive Distortion and FMC Jurisdiction.

OAK bypassed the stringent vetting, bonding, and disclosure requirements imposed by the FMC under 46 U.S.C. § 40901, enabling it to operate in regulated markets, solicit business, and secure freight contracts without Commission oversight. This conduct caused direct competitive harm to Way2Go, which was deprived of both business opportunities and the integrity of its regulatory identity, while simultaneously deceiving the shipping public into engaging with an unlicensed and unqualified operator.

In *Vehicle Carrier Services*, 846 F. 3d at 79, the Third Circuit acknowledged that one of the Act's central purposes is to “promote the growth and development of United States exports through competitive and efficient ocean transportation and by placing a greater reliance on the marketplace.” When an entity, like OAK, avoids the licensing process and unlawfully leverages another entity's credentials to enter the market, it creates an artificial advantage that undermines the competitive balance the law is designed to preserve.

Way2Go's loss is not merely economic. It is systemic. The purpose of requiring OTI licenses under 46 U.S.C § 40901 is to maintain a transparent, trustworthy, and level playing field

in international shipping. OAK's conduct upended that balance. As such, the competitive distortion here is not incidental to the licensing violation. It is the foreseeable and intended result of OAK's unlawful scheme.

II. Way2Go's Verified Complaint is Limited to the Relief Authorized by 46 U.S.C. 41305.

OAK mischaracterizes Way2Go's Verified Complaint as one that "is not limited to a request for a cease and desist" and instead alleges that the relief sought mirrors traditional common law claims such as fraud, theft, or tortious interference.¹ However, on the face of the Verified Complaint, Way2Go clearly states that it seeks relief expressly authorized under 46 U.S.C. § 41305, including reparations for injuries arising from OAK's violation of the Act.

Specifically, the Complaint requests that the FMC "enter an order directing OAK to cease and desist from further violations of the Shipping Act." Nowhere does the Verified Complaint seek damages for breach of contract, tortious interference, or any state-law claims extraneous to the FMC's statutory authority. Way2Go's allegations are anchored in OAK's unlawful operation as an unlicensed OTI and its misappropriation of Way2Go's FMC license, core violations within the jurisdictional scope of the FMC under 46 U.S.C. §§ 40901 and 41301–41305. The requested relief, namely, an order directing OAK to cease and desist from holding itself out as a licensed OTI and from further engaging in deceptive conduct is entirely consistent with the powers of the FMC.

Additionally, in *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm'n*, 141 F.4th 222, 232 (D.C. Cir. 2025), the court stated:

¹ OAK's reliance on *Pernell v. Southall Realty*, 416 U.S. 363 (1974), and *Dairy Queen, Inc. v. Wood*, 369 U.S. 469 (1962), is misplaced. Both cases address situations in which the only relief sought was a money judgment. *See Pernell*, 416 U.S. at 370; *Dairy Queen*, 369 U.S. at 476. Here, by contrast, Way2Go's Verified Complaint seeks equitable relief in the form of a cease-and-desist order to halt OAK's ongoing misuse of its FMC license, in addition to reparations expressly authorized under the Shipping Act. The Complaint is therefore materially different from the purely legal claims in *Pernell* and *Dairy Queen*.

Moreover, the Act broadly allows persons to file complaints “alleging a violation” of the Act and to “seek reparations for an injury to the complainant caused by the violation” – providing relief that sounds similar to a breach of contract remedy. *Id.* § 41301(a). Only two subsections of the entire Shipping Act are expressly exempted from private enforcement. *See id.* (limiting a party's ability to enforce § 41307(b)(1) before the Commission); *id.* § 41104(b) (same as to § 41104(a)(13)). ***For all other violations, the Act broadly allows the recovery of reparations for the injury caused by the violation in question.*** *See id.* § 41305(b). In fact, the Act specifically lays out how reparations are to be calculated for certain specific violations by common carriers. *See id.* § 41305(c)-(d).

Accordingly, while OAK is wrong to frame the Verified Complaint as seeking only common law remedies, the Act expressly authorizes complainants to seek reparations for injuries caused by violations of the Act and to obtain cease-and-desist relief to halt ongoing misconduct, and Way2Go’s requested remedies fall squarely within that statutory framework.

III. Way2Go’s Cause of Action Does Not Exceed the Jurisdiction of the FMC and Does Not Violate OAK’s Seventh Amendment Right to a Jury Trial.

OAK asserts that Way2Go’s claims fall outside the scope of the FMC jurisdiction and improperly infringe upon its Seventh Amendment right to a jury trial. This argument misapprehends both the jurisdictional framework of the Act and the FMC’s adjudicatory authority.

a. The FMC Has Exclusive Jurisdiction Over Shipping Act Claims.

The Act vests the FMC with authority to adjudicate complaints and award reparations for “actual injury caused to a person by a violation” of the Act’s provisions. *See* 46 U.S.C. § 41305(c). This includes violations such as unlicensed operations under 46 U.S.C. § 40901 and deceptive conduct that affects competitors and the shipping public. The FMC’s authority aligns with the well-established doctrine of *primary jurisdiction*, which dictates that regulatory agencies with specialized expertise should resolve disputes within their statutory purview before courts intervene. The Supreme Court reaffirmed this in *Consolo*, explaining that the FMC is uniquely equipped to determine whether conduct violates the Act and whether reparations are warranted.

Similarly, in *I.C.C. v. Atlantic Coast Line R. Co.*, 383 U.S. 576, 602, 606 (1966), the Court reiterated that courts must defer to agency expertise where complex regulatory schemes are involved.

Furthermore, 46 U.S.C. § 41306(a) expressly provides that after a Complaint is filed with the FMC under Section 41301 of Title 46, a Complainant may file a Complaint in District Court seeking a preliminary injunction. That right has been exercised, with Way2Go filing a District Court Complaint on July 31, 2025, seeking immediate injunctive relief against OAK's ongoing misuse of its FMC license. This sequence underscores that Complainant properly sought relief before the Commission and, consistent with 46 U.S.C. § 41306(a), subsequently filed in federal district court solely for preliminary injunctive relief, thereby adhering fully to the statutory framework. *See* 46 U.S.C. § 41306(a) ("After filing a complaint with the [FMC] under section 41301 of this title, the complainant may bring a civil action in a district court of the United States to enjoin conduct in violation of this part.").

Lastly, OAK claims that "[t]his Commission proceeding is not the correct forum for resolving what is essentially a contract and ownership dispute between former business partners." *See* Def.'s Mot. to Dismiss, at 10. However, this mischaracterizes the Verified Complaint. The relief sought is not premised on state contract law or ownership disputes, but on OAK's unlawful operation as an unlicensed OTI, in direct violation of the Act. The heart of the claim is regulatory misconduct: the misappropriation and continued use of Way2Go's FMC license, diversion of revenues obtained under that license, and deception of the shipping public. These allegations align within the FMC's exclusive jurisdiction and targets OAK's unlicensed operation and misappropriation of Way2Go's FMC license.

i. The FMC's Jurisdiction Is Distinct from Admiralty.

OAK also attacks the Verified Complaint as not the type of action that “would traditionally be brought in an admiralty court, as it is not harm that occurred on the open seas.” *See* Def.’s Mot. to Dismiss, at 8. Admiralty jurisdiction in federal courts concerns maritime torts and contracts arising on the high seas. This proceeding is distinct. It involves the Commission’s regulatory oversight of licensing, bonding, and consumer protection requirements under the Act. To suggest otherwise *reflects a fundamental misunderstanding of the Commission’s jurisdiction*. The FMC’s authority is not derived from admiralty law, nor is this a case where private litigants assert maritime contract or tort claims. The Commission’s adjudicatory process is not a substitute for an admiralty court, but a specialized administrative forum designed to prevent the precise harm at issue here: the ongoing misuse of an FMC license by an unlicensed operator. *See In re Containership Co. (TCC) A/S*, 466 B.R. 219, 226 (Bankr. S.D.N.Y. 2012) (“The FMC is an independent regulatory agency responsible for regulating “common carriers by water and other persons involved in the oceanborne foreign commerce of the United States . . . Congress intended for the FMC to exercise jurisdiction over the administration of the Shipping Act.”); *see also* 46 C.F.R. § 501.2.

b. The FMC’s Adjudicatory Process Does Not Violate the Seventh Amendment.

OAK contends that this proceeding infringes its Seventh Amendment right to a jury trial, arguing that the Verified Complaint amounts to a private common law dispute. That argument is misplaced. The Verified Complaint does not merely seek monetary damages; it also requests equitable relief in the form of a cease-and-desist order to halt OAK’s ongoing misuse of Way2Go’s FMC license. Because the relief sought includes injunctive remedies to prevent continued violations of a federal regulatory statute, this is within the FMC’s jurisdiction. The Seventh

Amendment is not implicated where the action seeks enforcement of public rights through an administrative body authorized by Congress to adjudicate such claims.

OAK's Seventh Amendment argument also fails because Congress has the authority to assign enforcement of statutory rights to administrative agencies without triggering a jury trial. As the Fifth Circuit has explained: "[t]hat is not to say, however, that Congress may never assign adjudications to agency processes that exclude a jury. ***When Congress properly assigns a matter to adjudication in a non-Article III tribunal, the Seventh Amendment poses no independent bar to the adjudication of that action by a nonjury factfinder.***" *Jarkesy v. SEC*, 34 F. 4th 446, 453 (5th Cir. 2022) (quoting *Atlas Roofing Co. v. Occupational Safety & Health Review Comm'n*, 430 U.S. 442, 455 (1977)).

Here, Congress expressly vested the FMC with authority to adjudicate Shipping Act violations, including unlicensed operations under 46 U.S.C. § 40901 and reparations for "actual injury" under 46 U.S.C. § 41305. Because this proceeding arises from a statutory scheme that Congress properly assigned to the FMC, the Seventh Amendment poses no bar to the Commission's adjudication.

While OAK correctly cites *Granfinanciera, S.A. v. Nordberg*, 492 U.S. 33, 34 (1989), for the principle that state-law breach of contract claims are "paradigmatic private rights," that case is immaterial. This is not a breach of contract claim. This is an administrative enforcement proceeding arising under federal statute, within the Commission's jurisdiction, and seeking remedies expressly authorized by Congress. Such equitable relief is beyond the scope of a common law jury trial and is precisely the kind of regulatory enforcement Congress intended to entrust to the FMC. Accordingly, OAK's Seventh Amendment argument fails under both precedent and

statutory design, as this proceeding is within the Commission's delegated authority to provide reparations and equitable relief for violations of the Act.

IV. The Commission Should Not Stay This Proceeding Because the Florida State Court Actions Are Distinct and Do Not Preclude FMC Jurisdiction.

Respondent's request for a stay also fails under the standards consistently applied by the Commission. The power to stay is "incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants." *Landis v. N. Am. Co.*, 299 U.S. 248, 254 (1936). The party seeking a stay bears the burden of demonstrating the need for one. *General Motors LLC v. Nippon Yusen Kabushiki Kaisha*, Docket No. 15-08, 2016 WL 240785, at *2 (FMC Jan. 5, 2016). In cases involving related state proceedings, the Commission applies the six-factor test articulated by the Supreme Court in *Moses H. Cone Memorial Hospital v. Mercury Construction Corp.*, 460 U.S. 1, 14–16 (1983): (1) which court first assumed jurisdiction, (2) the inconvenience of the federal forum, (3) the desirability of avoiding piecemeal litigation, (4) whether state or federal law provides the rule of decision on the merits, (5) the adequacy of the state court to protect the parties' rights, and (6) whether one of the actions has a vexatious or reactive nature. OAK relies on these very factors to argue for a stay, but as shown below, each factor either weighs against a stay or fails to support OAK's position.

First, which court first assumed jurisdiction and the inconvenience of the federal forum. OAK argues that because the Eleventh Judicial Circuit Court in Florida was filed first, judicial efficiency requires this Commission to defer. *See* Def.'s Mot. to Dismiss, at 9. While the Florida case was filed earlier, it involves ownership and fiduciary disputes, not statutory violations of the Act. The Commission has exclusive jurisdiction over unlicensed OTI operations, so the order of filing does not weigh in favor of a stay. OAK also contends that this proceeding duplicates

the state action and burdens judicial resources. *See* Def.’s Mot. to Dismiss, at 9–10. But the FMC is not an inconvenient or duplicative forum. It is the only forum empowered to halt OAK’s ongoing misuse of Way2Go’s license.

Second, the desirability of avoiding piecemeal litigation. OAK asserts that both cases arise from the same “nucleus of operative facts” at issue in the state court proceedings related to a September 2024 agreement and therefore risks inconsistent rulings. *See* Def.’s Mot. to Dismiss, at 10. Importantly, *OAK is not a party to the Florida cases*. This FMC proceeding does not seek to adjudicate the validity of a corporate ownership agreement, nor does it concern breach of fiduciary duty or contract interpretation. The state court is considering contractual and fiduciary claims between Way2Go and its owners; this Commission proceeding concerns whether OAK acted as an unlicensed OTI. Because the issues are distinct and the relief sought herein is narrowly tailored to OAK, who is not even a party to the state court cases, there is no risk of piecemeal or inconsistent litigation.

Third, whether state or federal law provides the rule of decision on the merits. OAK claims that the Verified Complaint “seeks remedies grounded in state common law concepts.” *See* Def.’s Mot. to Dismiss, at 10. The Verified Complaint alleges violations of 46 U.S.C. § 40901 and seeks remedies expressly authorized by Congress under 46 U.S.C. § 41305, including reparations and cease-and-desist relief. The rule of decision in this case is derived solely from federal statutory law, not state tort or contract principles. As such, this factor strongly favors the Commission retaining jurisdiction over this proceeding.

Fourth, the adequacy of the state court to protect the parties’ rights. OAK argues that the Florida court can provide all necessary relief, including damages and equitable orders regarding ownership and management. *See* Def.’s Mot. to Dismiss, at 10. But this assertion ignores

a critical distinction: only the FMC has the statutory authority to adjudicate violations of the Act and issue reparations or cease-and-desist orders under 46 U.S.C. §§ 41301–41305. Accordingly, this factor weighs heavily in favor of the Commission retaining jurisdiction, as it is the only forum empowered to grant the relief sought in this action.

Fifth, whether one of the actions has a vexatious or reactive nature. OAK characterizes this Complaint as reactive, claiming it was filed only after Mr. Ferraz was named a Defendant in the Florida action. *See* Def.’s Mot. to Dismiss, at 10. That mischaracterization ignores the Verified Complaint, which was filed to stop OAK’s ongoing statutory violations, not to relitigate the corporate ownership agreement brought before the state court action. In short, the Florida state action and this FMC case address different claims, governed by different law, with different remedies. Staying this case would leave ongoing Shipping Act violations unchecked and deprive the shipping public of the protections Congress mandated. Accordingly, the Commission should reject Respondent’s request for a stay.

CONCLUSION

For the foregoing reasons, Respondent’s Motion to Dismiss should be denied. Way2Go’s Verified Complaint sets forth detailed allegations supported by attached documentation, establishing that OAK knowingly and unlawfully misappropriated Way2Go’s FMC License, diverted revenues, seized operational infrastructure, and misled both regulators and the shipping public. These allegations demonstrate concrete, particularized, and ongoing injuries directly within the scope of the Shipping Act.

Contrary to Respondent’s assertions, this case is not rooted in state law or ownership disputes; it arises under federal statute and seeks remedies expressly authorized by Congress, including reparations and cease-and-desist relief. The FMC has exclusive jurisdiction to adjudicate

such violations, and the Seventh Amendment is not implicated where Congress has vested authority in an administrative tribunal to enforce statutory rights. Moreover, Respondent's request for a stay fails under the applicable *Landis* and *Moses H. Cone* factors, because the claims set forth in the state court action are distinct from the instant case and cannot provide the statutory relief that only the Commission is empowered to grant. Finally, the Verified Complaint satisfies the federal pleading standard of Rule 8(a)(2). It provides a short and plain statement of the claim, supported by specific facts and exhibits, sufficient to place Respondent on notice of the violations alleged and the relief sought.

For the reasons set forth above, Complainant respectfully requests that the Commission deny Respondent's Motion to Dismiss in its entirety, decline to stay these proceedings, and allow this matter to proceed to a full adjudication on the merits under the Act.

Dated this 9th day of September 2025.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 9th day of September 2025.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.